



File No.: EXP202305370

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 11, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against A.A.A. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on November 16, 2023, the proposed resolution was issued, which is transcribed below:

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File No.: EXP202305370

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On March 31, 2023, a Complaint Report was received from the SEPRONA ZARAGOZA TEAM (hereinafter the complainant), regarding a possible breach of the provisions of personal data protection regulations by A.A.A. with NIF ***NIF.1 (hereinafter, the accused party).

In the forwarding letter, the complainant provided a Complaint Report dated March 26, 2023, indicating that the accused party is responsible for a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of Article 5.1.c) of the GDPR and Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The acting agents conducted an inspection visit, verifying that the accused had installed 4 domes (cameras in the shape of a dome that record 360°) on posts approximately 4 meters high. All of them have data antennas to connect remotely to their recording and alarm system. In the agents' opinion, given their special configuration, these cameras capture images of the entire environment, including the course of (...) (a very frequented tourist route), adjacent paths and trails, neighboring properties, etc.

The video surveillance system installed by the accused party also does not have the informative signs indicating the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

For the same facts, file EXP202301103 was processed on January 31, 2023, with the complainant verifying that no corrective measures had been adopted by the accused party regarding the video surveillance system for which it is responsible, and that it is not marked with the required informative signs of the video surveillance area oriented towards the public road.

The documents provided are:

- Reports made by the FFCCSE
- Photographic report

SECOND: The accused party was sent a letter indicating the obligations it had regarding data protection and video surveillance, which was notified on February 7, 2023, after the submission of a report from the complainant regarding the same facts on January 20, 2023.

THIRD: On October 11, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

FOURTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), at the interested party's address, on October 23, 2023. The accused party submitted a letter of allegations in which, in summary, it stated that:

1) Regarding the alleged infringement of Article 5.1.c) GDPR.

The installed cameras only and exclusively capture images of the plot located at ***ADDRESS.1;

images of the course (...), nor adjacent paths and trails, nor neighboring properties are obtained. The reason for installing them is that various thefts of materials, chickens, eggs, etc., which were located on the plot, have been occurring, which is unfenced and without any wall, and which is owned by Mr. B.B.B., which led his son-in-law Mr. A.A.A. to install the cameras as a deterrent measure to ensure the safety of the goods and belongings located on the plot.

2) Regarding the alleged infringement of Article 13 GDPR.

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That on the property owned by D a. B.B.B., several informational signs regarding the existence of a video camera installation were placed prior to the notification of the initiation of sanctioning procedure. Although, as previously indicated, images are only obtained from the interior of the property.

FIFTH: Attached as an annex is a list of documents present in the procedure.

From the actions carried out in the present procedure and the documentation present in the file, the following has been established:

PROVEN FACTS

FIRST: It is evidenced, according to the documentation present in the file, that the reported party has a functioning video surveillance system installed on their property, which records images of the entire environment.

SECOND: It is evidenced, according to the documentation present in the file, provided by the reported party, that there are signs indicating that the area is under video surveillance.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In response to the allegations presented by the reported party, the following should be noted:

- The reported party alleges that the installed cameras solely capture images of the plot located at ***ADDRESS.1; images are not obtained of the watercourse (...), nor of adjacent paths and trails, nor of neighboring properties.

In this regard, this Agency, after examining the photographs provided by the reported party, observes that in at least one of them, images of the eye of a bridge are captured that would not belong to the interior of the property itself, therefore it can be considered that the capture is excessive.

- The reported party alleges that on the property owned by D a. B.B.B., several informational signs regarding the existence of the video camera installation were placed prior to the notification of the initiation of the sanctioning procedure.

In this regard, this agency notes that, based on the documentation provided in the file, and applying the principle of presumption of innocence, the statements made are accepted, and the initial infringement attributed for the alleged non-compliance with Article 13 of the GDPR is archived.

III

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. In Article 4.2 of the GDPR, the concept of

"processing" of personal data is defined.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;”

The images generated by a system of cameras or video cameras are personal data, therefore their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and...

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proportional to the purpose it is directed towards. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on it.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the field of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

IV

In the present case, from the documentation in the file, the complaint report provided by the complainant, and the images submitted by the defendant, it is evident that the defendant has installed video surveillance cameras on their property, which are recording images of the environment adjacent to their own property.

It is considered that the facts presented violate what is established in Article 5.1.c) of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

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“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

V

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a “layered information” system in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, and the possibility of exercising the rights.

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provided for in articles 15 to 22 of the GDPR and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information of the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the other elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, assess them, and, if necessary, adopt appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in cases of low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to adjust the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding section k) of the aforementioned Article 83.2 GDPR.

For all of the above, it is considered that the corresponding sanction is an administrative fine in the amount of 500 euros. It should be noted that the voluntary payment of the proposed amounts does not exempt from demonstrating the regularization of the video surveillance system in accordance with the current regulations.

VII

Possible measures

Article 58.2 d) of the GDPR establishes that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...".

In such a case, in the resolution adopted, this Agency may require the controller to, within the determined period:

- Prove that they have proceeded to remove the camera or video camera system from the current location or to reorient it, in such a way that the viewing of the images observed evidences that the surroundings, paths, and adjacent properties are not captured.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

In light of the above, the following

PROPOSAL FOR RESOLUTION

is issued:

That the Director of the Spanish Data Protection Agency sanctions A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, with a fine of 500 € (FIVE HUNDRED euros).

That the Director of the Spanish Data Protection Agency orders A.A.A., with NIF ***NIF.1, that

pursuant to Article 58.2.d) of the GDPR, within the period of XX, prove that they have complied with:
- The removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed...

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They observe evidence that the environment, the roads, and the adjacent farms are not captured. Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, you are informed that you may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will entail a reduction of 20% of the amount thereof. With the application of this reduction, the sanction would be set at 400 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, you must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. You must also send the proof of payment to the General Sub-Directorate of Inspection to proceed with closing the file.

By virtue of this, you are notified of the above, and the procedure is made known to you so that within TEN DAYS you may allege whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with Article 89.2 of the LPACAP.
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ANNEX

Index of file EXP202305370

31/03/2023 Complaint from GUARDIA CIVIL OF ***LOCALITY; (...)

13/10/2023 Agreement to initiate against A.A.A.

07/11/2023 Allegations from A.A.A.

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SECOND: On December 7, 2023, the respondent has proceeded to pay the sanction in the amount of 400 euros making use of the reduction provided in the previously transcribed resolution proposal.

THIRD: The payment made entails the waiver of any action or administrative appeal against the sanction, in relation to the facts referred to in the resolution proposal.

FOURTH: In the previously transcribed resolution proposal, the constitutive facts of the infringement were verified, and it was proposed that the Director impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO DECLARE the termination of procedure EXP202305370, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the resolution proposal transcribed in this resolution, within 3 months from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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